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Indian Evidence Act

MCQs

Booklet

(100 Questions)

1) The purpose of Indian Evidence Act, 1872 as set out in Preamble is

- a) To provide and consolidate the law of evidence
- b) To provide, define and amend the law of evidence
- c) To consolidate, define and amend the law of evidence
- d) To define and amend the law of evidence
- e) To define and consolidate the law of evidence

2. What is oral evidence?

- a) Direct evidence
- b) Statements made before court
- c) Deposition before court, after the police has recorded the statement
- d) Hearsay evidence
- e) None of the above

3. Hostile Witness means

- a) A witness who is not desirous of telling the truth
- b) A witness who is desirous of telling the truth
- c) An overpowered witness
- d) Bribed witness
- e) An unfavourable witness

4. Which chapter of Indian Evidence Act deals with “Witnesses”?

- a) Chapter VI
- b) Chapter VII
- c) Chapter VIII
- d) Chapter IX
- e) Chapter X

5. A is tried for murder of B by beating with a club with the intention of causing his death. At A's trial which of the following is not a fact in issue?

- a) A beating B with a club
- b) A causing B's death with the club
- c) A's conversation with B
- d) A's intention to cause B's death
- e) All are facts in issue?

6. Facts forming part of the same transaction are facts

- a) Which occurred at the same time and place
- b) Which occurred at a different time and place
- c) Which are not connected with other facts on the basis of object and place
- d) Which are connected with other facts on the basis of time, place, object, parties, acts or omissions
- e) None of the above

7. The question is whether A committed a crime at Mumbai on a certain day. The fact that on that day, A was at Trivandrum is relevant

- a) As a motive for fact in issue
- b) As introductory to fact in issue
- c) As preparation of relevant fact
- d) As it makes existence of fact in issue highly improbable
- e) All of the above

8. The Indian Evidence Act 1872 applies to

- a) All judicial proceedings in or before any court
- b) Affidavits presented to any Court or officer
- c) Proceedings before an arbitrator
- d) Both a and c
- e) All a, b and c

9. Admission according to the Indian Evidence Act includes statements made by

- a) Persons expressly referred to
- b) Authorized agents of parties
- c) Persons whose liability must be proved
- d) Persons from whom the parties derived their interest in subject matter
- e) All of the above

10. A relevant confession becomes irrelevant when

- a) Made to a police officer
- b) Made under a promise of secrecy
- c) When the accused was drunk
- d) Made in consequence of deception practiced on accused
- e) Inferred from certain answers to questions that need not be answered

11. A person is accused for theft, evidence is sought to be produced to prove that the accused has a bad character and is convicted of theft on several occasions in the past

- a) Bad character is relevant
- b) The evidence was admissible
- c) The evidence was inadmissible
- d) Both a and b
- e) None of the above

12. When a thirty years old document is produced before the court, it may presume

- a) That the facts stated in the document are proved
- b) That the document is duly executed
- c) That the contents of it are true
- d) That the contents of it are proved
- e) All of the above

13. The burden of proving that the case of the accused comes within any of the General Exceptions in Indian Penal Code is upon the

- a) Prosecution
- b) Court
- c) Accused
- d) Investigating police officer
- e) Magistrate

14. The opinion of expert is not relevant

- a) On a point of foreign law
- b) On a point of Indian Law
- c) On matters of science
- d) On matters of art
- e) On handwriting impressions

15. Which of the following section/s of Indian Evidence Act applies to pleaders relating to professional communication?

- a) Section 126
- b) Section 127
- c) Section 128
- d) Section 133
- e) Both Sections 126 and 127

16. Which of the following questions can be forbidden by Court?

- a) Indecent or scandalous questions
- b) Questions intended to insult or annoy
- c) Questions which appear needlessly offensive in form

- d) Both b and c
- e) All a,b and c

17. When can the leading questions be asked?

- a) In an examination-in-chief or in a re-examination only with the permission of the court
- b) Anytime in re-examination
- c) Anytime in Cross examination
- d) Both a and c
- e) All a,b and c

18. The order in which witnesses are produced and examined shall be regulated

- a) by the law and practice for the time being relating to civil procedure
- b) by the law and practice for the time being relating to criminal procedure
- c) by the discretion of the Court
- d) by the law and practice for the time being relating to civil and criminal procedure respectively, and, in the absence of any such law, by the discretion of the Court
- e) None of the above

19. As per the Indian Evidence Act, an accomplice's testimony_____?

- a) needs to be corroborated
- b) is not valuable
- c) is unjust
- d) if not corroborated, conviction is illegal
- e) if not corroborated, conviction is legal

20. A intentionally and falsely leads B to believe that certain land belongs to A, and thereby induces B to buy and pay for it. The land afterwards becomes the property of A, and A seeks to set aside the sale on the ground that, at the time of the sale, he had no title.

- a) A may be allowed to set aside the sale
- b) A can be allowed to set aside the sale only with the permission of B
- c) A may not be allowed to set aside the sale
- d) A must not be allowed to prove his want of title
- e) A may be allowed to prove his want of title

21. Under Indian Evidence Act, the evidence given by a dumb witness will be regarded as

- a) Written evidence
- b) Documentary evidence
- c) Oral evidence
- d) Hearsay evidence
- e) Circumstantial evidence

22. A, accused of murder, alleges that by grave and sudden provocation, he was deprived of the power of self-control. B denies the fact.

- a) The burden of proof must be shared by both A and B
- b) The burden of proof is on B
- c) The burden of proof is on prosecution
- d) The burden of proof is on Court
- e) The burden of proof is on A

23. When language used in a document is plain in itself, but is unmeaning in reference to existing facts

- a) evidence may not be given to show that it was not meant to apply to such facts.
- b) evidence may be given to show that it was used in a peculiar sense.

- c) evidence may not be given to show that it was used in a peculiar sense
- d) Both a and c
- e) Either a or b

24. Public document under Indian Evidence Act can be proved by

- a) Oral evidence
- b) Writer of certified copy
- c) Certified copy
- d) Both b and c
- e) Either of a,b or c

25. The contents of documents may be proved

- a) By Primary Evidence only
- b) By Secondary Evidence only
- c) Either by primary or by secondary evidence
- d) Both by primary and by secondary evidence
- e) None of the above

26. What is Res inter alios acta ?

- a) something transacted between other parties
- b) what is just is unjust
- c) where there is a right there is relief
- d) things said and done
- e) facts forming part of same transaction

27. Admissions are not conclusive proof of the matters admitted but they may operate as

- a) Res judicata
- b) Estoppels
- c) Res gestae
- d) Confessions
- e) All of the above

28. Doctrine of Res gestae is an exception to?

- A) Relevancy of facts
- B) Hearsay evidence
- C) Rule that hearsay evidence is not admissible
- D) Relevancy of facts forming a part of same transaction.
- E) Statement of persons who cannot be found

29. A ordered certain goods to B, B has delivered them in succession to C, D, E and then to B. In this case relevant facts will be?

- A) delivery to B only
- B) delivery to C only
- C) delivery to C, D, E and B.
- D) delivery to C and B.
- E) delivery to E

30. Which of the following is not a “fact” as per The Indian Evidence Act?

- A. That there are certain objects arranged in a certain order in a certain place.
- B. That a man heard or saw something.
- C. That a man said certain words or not.
- D. That a man holds an opinion
- E. None of the above.

31. Which of the following is not a “Document” as per Indian Evidence Act, 1872?

- A. Any matter expressed
- B. Any matter expressed by means of letters or figures
- C. Any matter expressed by means of letters or figures or marks on a stone but not all these means expressed together.
- D. Any matter which is inscribed on a tombstone.
- E. Any matter written on a slate

32. If directed by the Act. The Court shall presume a fact as proved

- A. Unless and until it is proved
- B. Unless and until it is disproved
- C. Until it remains proved
- D. A or B.
- E. A or C

33. When a fact is a “conclusive proof”, the Court_____.

- A. Shall only allow evidence to be given on that fact
- B. Shall not allow evidence to be given on that fact.
- C. Shall not allow evidence to be given for disproving that fact
- D. Shall not allow evidence to be given for proving that fact.
- E. Shall allow evidence to be given for proving or disproving that fact.

34. The question is, whether a given document is the will of A. The state of A's property and of his family at the date of the alleged will may be relevant facts or not? If yes under which Section of Indian Evidence Act, 1872?

- A. not related and therefore not relevant facts.
- B. relevant facts under s.8.
- C. relevant facts under S.9

- D. relevant facts under S.7
- E. relevant facts under S.10

35. A fact not otherwise relevant becomes relevant under s.11 of the Indian Evidence Act, on the grounds of _____?

- A. inconsistency/ consistency
- B. relevancy
- C. connectivity
- D. identity
- E. anonymity

36. As a general rule Admissions are?

- A. not relevant but admissible
- B. self- serving statements
- C. self-harming statements
- D. relevant as a confession if they are self- harming
- E. relevant as a confession if they are self-serving

37. An admission is:

- A. An inference
- B. A suggestion
- C. A conclusive statement
- D. A leading statement.
- E. A confessional statement.

38. Whether a horse sold by A to B is sound or not is in question, A says to B — “Go and ask C, C knows all about it.” C’s statement is?

- A. admission
- B. confession
- C. inference
- D. leading question.
- E. both an admission and also can be used as a leading question.

39. A dying declaration is:

- A. a confession
- B. an admission
- C. self-harming statement
- D. an extra-judicial confession.
- E. considered as a judicial confession

40. Admission in civil cases is:

- A. relevant
- B. irrelevant
- C. not relevant if parties have agreed that evidence of it should be given.
- D. not relevant if parties have agreed that evidence of it should not be given.
- E. relevant always.

41. Dying declaration is made admissible under which section of the Indian Evidence Act, 1872?

- A. S. 21
- B. S. 32
- C. S. 33

D. S. 21 and 32.

E. S. 32 and 33.

42. If a person has made an entry in a book of accounts kept by him in the course of his business and he dies subsequently, can the entries in book of accounts be taken into consideration under s.32?

- A. no
- B. not under s.32
- C. taken under s.33
- D. taken under s.32.
- E. not admissible

43. Opinion of experts is relevant on a question relating to:

- A. foreign law
- B. art or science
- C. handwriting and finger impressions identity
- D. both B and C
- E. A, B and C

44. Opinion as to handwriting is relevant under:

- A. Opinion of experts.
- B. Opinion as to handwriting under s.47
- C. Opinion as to handwriting under s. 45
- D. Not relevant.
- E. relevant under S.47 and admissible under S. 45

45. Opinion on relationship:

- A. Is Relevant fact
- B. Is Not a relevant fact.
- C. Relevant under s. 49.
- D. Can be expressed from the conduct of parties.
- E. is relevant if any custom is in question.

46. Character is relevant in-

- A. Civil cases.
- B. Criminal cases
- C. Both civil as well as criminal cases.
- D. In any case if it appears from facts relevant or not relevant.
- E. none of the cases as provided under the Indian Evidence Act, 1872.

47. It was held that the dying declaration made through signs, gestures or by nods are admissible as evidence, in the case of?

- A. Pakala Narain Swamy Vs. Emperor
- B. Queen Vs. Abdullah
- C. Queen Vs. Emperor
- D. Taylor Vs. Krell.
- E. R. Vs. Queen.

48. Facts Judicially noticeable_____

- A) need not be proved
- B) is relevant only
- C) as admissible always
- D) need to be proved always
- E) are the admissible facts

49. Which of the following statements is not true about oral evidence?

- A. Evidence as to a fact heard by A.
- B. Evidence as to a fact seen by A.
- C. Evidence as to a fact understood by A through Braille if he is blind
- D. Evidence as to an opinion of B given by A.
- E. Evidence as to opinion of A.

50. _____ evidence must be direct.

- A) oral
- B) oral and documentary
- C) documentary
- D) primary evidence
- E. secondary evidence

51. The documents itself produced before court is:

- A) primary evidence
- B) secondary evidence
- C) direct primary evidence
- D) direct documentary evidence.
- E. direct secondary evidence

52. When a document is executed in several parts, each part is:

- A) a counterpart of the document
- B) primary evidence of the document
- C) secondary evidence of the document
- D) primary evidence of the 1st part.
- E. secondary evidence of it's respective parts

53. 2 xerox copies of a will deed are _____?

- A) primary evidence of the original will deed
- B) are not primary evidence of the original will deed
- C) not primary evidence of contents of each other
- D. All of the above are true.
- E. none of the above are true.

54. Which of the following provision of Indian Evidence Act talks about documents to be proved by primary evidence?

- A. 60
- B. 62
- C. 63
- D. 64
- E. 65

55. In case of a public document_____.

- A. Secondary evidence may be given
- B. Only primary evidence may be given.
- C. Secondary evidence can be given with the permission of court
- D. Secondary evidence can be given only if primary is not available or accessible
- E. always secondary only should be given

56. Certified copy of a judgment is which kind of evidence?

- A. Primary
- B. Secondary
- C. Direct
- D. Indirect
- E. B and C.

57. If the attesting witness denies the execution of a will _____?

- A. It's execution may not be proved by other witness
- B. The statement cannot be challenged
- C. Its execution may be proved by other evidence
- D. The will stands cancelled.
- E. The will does not get a probate

58. An oral account of the contents of an original document is:

- A. secondary evidence
- B. primary evidence
- C. secondary when compared to the original
- D. not secondary evidence when compared to the original
- E. considered original document only

59. A document which is not required by law to be attested can be proved as if it was:

- A. attested
- B. unattested
- C. not needed to be attested
- D. unattended.
- E. valid and attested

60. Is there any presumption as to genuineness of certified copies under Indian Evidence Act, 1872?

If yes, then under which section?

- A. No there is no such provision.
- B. Yes under s. 66
- C. Yes under s. 77

- D. Yes under s. 79.
- E. Yes under s. 82

61. Maps or plans made by authority of government is proved to be true under s.____?

- A. 82
- B. 83
- C. 84
- D. 85.
- E. 90

62. What kind of a presumption lies in favour of a power of attorney?

- A. Irrebuttable presumption
- B. Rebuttable presumption
- C. Natural presumption
- D. presumption in fact
- E. No presumption.

63. Electronic signature certificates are presumed to be true for-

- A. contents of the certificate
- B. information listed in it
- C. information listed in it including subscriber information
- D. information listed in it excluding subscriber information.
- E. only the signature in documents

64. Presumption as to electronic messages extends to:

- A. message forwarded by the originator and the corresponding message fed into computer for transmission
- B. to the person who has sent the message
- C. to the person who has addressed the message
- D. A and B
- E. All of the above.

65. The documents that are not produced inspite of giving a notice to produce-

- A. shall not carry any presumption
- B. shall carry a presumption in fact and not law.
- C. shall be presumed to be attested, stamped or duly executed by law
- D. shall be presumed to not be attested, stamped or duly executed by law.
- E. may be presumed to be attested, stamped and duly executed by law.

66. Presumption as to electronic records is for records _____.

- A. 5 years old
- B. 10 years old
- C. 30 years old
- D. 50 years old.
- E. 20 years old.

67. Which Amendment to the Indian Evidence Act has added S. 90 A ?

- A. Indian Evidence Amendment Act, 2000
- B. Indian Evidence Amendment Act, 2001
- C. Indian Evidence Amendment Act, 2011
- D. Indian Evidence Amendment Act, 2012.
- E. Indian Evidence Amendment Act, 20120

68. Which of the following is not secondary evidence?

- A. certified copies
- B. copies made from or compared with the original;
- C. counterparts of documents as against the parties who did not execute them;
- D. oral accounts of the contents of a document given by some person who has not himself seen it.
- E. oral accounts of the contents of a document given by a person

69. Who shall be deemed to have the custody of certified copies as per S. 76 of the Indian Evidence Act, 1872?

- A. Court
- B. maker of the document.
- C. party who has made application for certified copy.
- D. an officer authorised to deliver the certified copy as a part of his duty.
- E. principle district judge of the court if certified copy if taken from district court and Registrar of High Courts and Supreme Court.

70. As per S. 64 proof of documents must be given by primary evidence except:

- A. is in cases mentioned under S. 65
- B. as in cases mentioned under s. 66
- C. in cases where contents of the document need to be proved.
- D. in cases where contents of the document need to be proved by an oral account.
- E. in cases mentioned under S. 74

71. S. 8 of the Indian Evidence Act, 1872 includes facts that are relevant for constituting-motive, preparation, previous and subsequent conduct. Does it include statements also?

- A) no statements are not included
- B) statements are included as a motive

- C) statements are included as a conduct
- D) statements which accompany and explain acts other than statements are included as conduct
- E). only facts are relevant in this section

72. All witnesses are competent to testify some situations as mentioned under s._____.

- A) 118
- B) 119
- C) 116
- D) 115
- E. 114

73. A lunatic is always competent to testify except when:

- A) unless he is prevented by his lunacy from understanding the questions put to him and giving rational answers to them.
- B) unless he is prevented by his lunacy from understanding the questions put to him
- C) unless he is prevented by his lunacy from and giving rational answers to the questions posed to him.
- D) no exceptions.
- E. he is not giving rational answers to any questions put forth by court.

74. Witnesses who are unable to communicate verbally are:

- A) not able to testify
- B) able to testify but their testimony is not credible
- C) able to testify by way of signs, writing or in any other manner in which they can make it intelligible.
- D) able to testify but their testimony is fragile.
- E. able to testify by way of joint affidavit with other witness only

75. if the witness is unable to communicate verbally Court _____ take assistance of an interpreter and such statement shall be _____.

- A) shall, video graphed
- B) may, video graphed
- C) shall, recorded
- D) cannot, biased.
- E. shall, audiographed and in writing

76. In a Civil proceedings Husband and wife if parties to the suit are _____.

- A) competent witnesses
- B) not competent witnesses
- C) competent witnesses with respect to each other only
- D) competent witnesses against the whole world but not against each other.
- E. not competent witnesses as to testimonies with respect to each other.

77. In a Criminal proceeding against any person, husband and wife of such person are _____

- A) competent witnesses
- B) not competent witnesses
- C) competent witnesses with respect to that person only
- D) competent witnesses against the co-accused but not against that person(spouse).
- E. competent witness but their statement has no reliability

78. A, on his trial before the Court of Session, says that a deposition was improperly taken by B, who is the Magistrate, in such a case:

- A) B cannot be compelled to answer questions
- B) B can be compelled to answer questions
- C) B can be compelled to answer questions only upon a special order by Superior court.

D) B cannot be compelled to answer questions until there is a Special order by the Division Bench of the High Court.

E. B can be compelled to answer questions only if they are relevant and on order of magistrate.

79. Communications during marriage are protected under which Section of the Indian Evidence Act, 1872?

- A. 120
- B. 121
- C. 122
- D. 123
- E. 124.

80. Protection of communications during marriage extends to:

- a) only the persons who are lawfully married to each other
- b) any person who is present in the marriage ceremonies
- c) persons who are married to each other and also their children.
- d) persons who are married to each other and also the people who share same household as the couple.
- e. people who are in a live-in- relationship

81. Communications during marriage can be disclosed:

- A) after 7 years of marriage
- B) in suits between married persons
- C) in suits between married persons and in proceedings in which one married person is prosecuted for any crime committed against the other.
- D. After divorce.
- E. After 2 years of divorce.

82. Are official communications protected under the Indian Evidence Act, 1872? If yes, under which section?

- A. S. 122
- B. S. 123
- C. S. 124
- D. S. 127
- E. not covered under Indian Evidence Act, it is covered under Right to Information Act.

83. As per S. 125 of the Indian Evidence act, 1872 a police officer_____.

- A. shall be compelled to say whence he got any information as to the commission of any offence
- B. shall not be compelled to say whence he got any information as to the commission of any Offence.
- C. shall be compelled to say whence he got any information as to the commission of any offence whereas a magistrate shall not be compelled so.
- D. shall not be compelled to say whence he got any information as to the commission of any offence whereas a magistrate shall be compelled so.
- E. may be compelled to say whence he got any information as to the commission of any Offence, if the Magistrate requires so.

84. Professional communications between a client and his attorney are protected :

- A. when it is made in the course of employment
- B. when it is made for the purpose of employment
- C. when it is made for any illegal purposes also.
- D. A and B.
- E. A and C.

85. Professional communications made under S. 126 of the Indian Evidence Act, 1872 are applicable to:

- A. attorney, vakil, pleaders
- B. attorney, vakil, pleaders and interpreters
- C. attorney, vakils, pleaders and barristers
- D. attorney only
- E. attorney, vakils, pleaders, barristers and interpreters, clerks and servants of them

86. Is there any thing which is a confidential communication between legal advisor and client as per Indian Evidence Act, 1872?

- A. no
- B. yes
- C. yes there is confidential communication unless the client is called as witness before court and he may be compelled to answer if Court finds it necessary
- D. yes there is confidential communication even if the client is called as witness before court, he is not bound to answer on that point
- E. yes, there is confidential communication and evidence act is silent about it.

87. If an answer criminales him, a witness:

- A. shall be excused
- B. shall be excused from answering
- C. shall not be excused from answering
- D. shall not be excused from penalty or forfeiture of any kind
- E. may be excused if good conduct

88. An accomplice shall be a competent witness against?

- A. An accused person
- B. Any person

- C. Against an accused or a third person also
- D. nobody, is only the source of further investigation.
- E. himself only

89. What is the minimum number of witnesses required to prove any fact?

- A. 2
- B. 3
- C. 5
- D. 4
- E. No particular number of witnesses is case required

90. The examination of a witness by adverse party is?

- A. Examination in chief
- B. Cross examination
- C. Re- examination
- D. Leading questions
- E. A, B or C

91. A person called to produce a document:

- A. cannot be examined.
- B. can be cross-examined
- C. can be chief -examined
- D. does not become a witness merely by production of document
- E. becomes a witness by production of document and can be cross-examined on the same.

92. Leading question is a:

- A. question carrying a presumption
- B. question suggesting answer
- C. question suggesting negation
- D. rhetorical question.
- E. WH question

93. Leading questions may be asked in-

- A. cross-examination
- B. chief-examination
- C. both cross and chief-examination
- D. cross, chief and re-examination.
- E. admissions and cross- examination of confession statements.

94. Questions to victim if relating to consent in cross-examination_____.

- A. cannot be asked.
- B. can be asked
- C. cannot be asked if of immoral character or previous sexual experience
- D. cannot be asked if of general immoral character.
- E. can be asked if relating to previous sexual experience and quality of consent and

95. A witness:

- A. cannot be compelled to answer
- B. can be compelled to answer if the question is relevant to the suit.
- C. cannot be compelled to answer even if the question is relevant to the suit
- D. can be compelled to answer irrespective of whether it is relevant or irrelevant to the suit.

E. can be compelled to answer if he causes perjury.

96. If the court asks a question which is of such a nature that the truth of the imputation conveyed would affect the opinion of the Court as to the credibility of the witness, the question is ____

- A. Reasonable
- B. Proper
- C. Not reasonable
- D. Not proper.
- E. not credible

97. Indescent and scandalous questions are discussed under which section of the Indian Evidence Act, 1872?

- A. S. 142
- B. S.155
- C. S.154
- D. S.151
- E. S. 156

98. To refresh his memory a witness may refer to a document _____?

- A. made by himself
- B. made by others
- C. made by others and by giving a copy of the document as secondary evidence
- D. made by himself and by giving a copy of the document as secondary evidence
- E. C and D

99. Rejection of evidence is:

- A. not a ground for new trial in itself.
- B. a ground for new trial in itself.
- C. A ground for new trial but not for reversal of decision.
- D. A ground for reversal of decision but not a new trial.
- E. not a sound decision to go ahead with, but has to be followed as a procedure of natural justice.

100. Questions to corroborate evidence of a relevant fact:

- A. are admissible.
- B. are not admissible.
- C. are leading questions
- D. are lawful and just but not having weightage as cogent evidence.
- E. are valid and are always needed to prove a case beyond reasonable doubt

Answer Key

1. Ans- c

Preamble— WHEREAS it is expedient to consolidate, define and amend the law of Evidence.

2. Ans- b

“Evidence”—“Evidence” means and includes —

(1) all statements which the Court permits or requires to be made before it by witnesses, in relation to matters of fact under inquiry; such statements are called oral evidence;

(2) all documents including electronic records produced for the inspection of the Court; such documents are called documentary evidence.

3. Ans- e

A hostile witness is a witness who appears to be refusing to fully testify in support of the person who called them or testifies in a way that significantly differs from their pre-trial statement.

The person who calls you as a witness expects you to provide the court with evidence similar to what you may have said in a pre-trial statement. If you refuse to answer questions or contradict what you said before, the person who called you can apply to the judge to have you declared a hostile witness.

Section 154 of the Indian Evidence Act talks about the hostile witness. This section enables the court to permit the party to cross-examine his own witness, who has become hostile.

4. Ans- d

CHAPTER VI – OF THE EXCLUSION OF ORAL BY DOCUMENTARY EVIDENCE

CHAPTER VII – OF THE BURDEN OF PROOF

CHAPTER VIII –ESTOPPEL

CHAPTER IX - OF WITNESSES

CHAPTER X – OF THE EXAMINATION OF WITNESSES

5. Ans- c

Illustration to Section 5 of Evidence Act - Evidence may be given of facts in issue and relevant facts. —Evidence may be given in any suit or proceeding of the existence of non-existence of every fact in issue and of such other facts as are hereinafter declared to be relevant, and of no others.

Explanation—This section shall not enable any person to give evidence of a fact which he is disentitled to prove by any provision of the law for the time being in force relating to Civil Procedure

(a) A is tried for the murder of B by beating him with a club with the intention of causing his death.

At A's trial the following facts are in issue—

A's beating B with the club;

A's causing B's death by such beating;

A's intention to cause B's death.

6. Ans- d

Section 6 of Evidence Act - Relevancy of facts forming part of same transaction—Facts which, though not in issue, are so connected with a fact in issue as to form part of the same transaction, are relevant, whether they occurred at the same time and place or at different times and places.

7. Ans- d

Section 11 of Evidence Act - When facts not otherwise relevant become relevant.—Facts not otherwise relevant are relevant—

(1) if they are inconsistent with any fact in issue or relevant fact;

(2) if by themselves or in connection with other facts they make the existence or non-existence of any fact in issue or relevant fact highly probable or improbable.

Illustrations

(a) The question is, whether A committed a crime at Calcutta on a certain day. The fact that, on that day, A was at Lahore is relevant. The fact that, near the time when the crime was committed, A was at a distance from the place where it was committed, which would render it highly improbable, though not impossible, that he committed it, is relevant. This is also known as Plea of Alibi.

8. Ans- a

Section 1 of Indian Evidence Act

Short title - This Act may be called the Indian Evidence Act, 1872.

Extent—It extends to the whole of India and applies to all judicial proceedings in or before any Court, including Courts-martial, other than Courts-martial convened under the Army Act, the Naval Discipline Act or the Indian Navy (Discipline) Act, but not to affidavits presented to any Court or officer, nor to proceedings before an arbitrator;

9. Ans- e

Section 18,19,20 of Indian Evidence Act.

10. Ans- a

Section 25 and 29 of Indian Evidence Act.

11. Ans- d

Section 54 of Evidence Act - Previous bad character not relevant, except in reply— In criminal proceedings, the fact that the accused person has a bad character, is irrelevant, unless evidence has been given that he has a good character, in which case it becomes relevant.

Explanation 1—This section does not apply to cases in which the bad character of any person is itself a fact in issue.

Explanation 2. —A previous conviction is relevant as evidence of bad character.

12. Ans- b

Section 90 of Indian Evidence Act - Presumption as to documents thirty years old. — Where any document, purporting or proved to be thirty years old, is produced from any custody which the Court in the particular case considers proper, the Court may presume that the signature and every other part of such document, which purports to be in the handwriting of any particular person, is in that person's handwriting, and, in the case of a document executed or attested, that it was duly executed and attested by the persons by whom it purports to be executed and attested.

13. Ans- c

Section 105 of Indian Evidence Act - Burden of proving that case of accused comes within exceptions –When a person is accused of any offence, the burden of proving the existence of circumstances bringing the case within any of the General Exceptions in the Indian Penal Code (45 of 1860), or within any special exception or proviso contained in any other part of the same Code, or in any law defining the offence, is upon him, and the Court shall presume the absence of such circumstances.

14. Ans- b

Section 45 of Indian Evidence Act - Opinions of experts–When the Court has to form an opinion upon a point of foreign law or of science, or art, or as to identity of handwriting or finger impressions, the opinions upon that point of persons specially skilled in such foreign law, science or art, or in questions as to identity of handwriting or finger impressions are relevant facts. Such persons are called experts.

15. Ans- e

Section 126 - Professional communications – No barrister, attorney, pleader or vakil, shall at any time be permitted, unless with his client's express consent, to disclose any communication made to him in the course and for the purpose of his employment as such barrister, pleader, attorney or vakil, by or on behalf of his client, or to state the contents or condition of any document with which he has become acquainted in the course and for the purpose of his professional employment, or to disclose any advice given by him to his client in the course and for the purpose of Section 127 - Section 126 to apply to interpreters, etc.– The provisions of section 126 shall apply to interpreters, and the clerks or servants of barristers, pleaders, attorneys and vakil such employment:

16. Ans- e

Section 151 and 152 of Indian Evidence Act

Section 151 - Indecent and scandalous questions– The Court may forbid any questions or inquiries which it regards as indecent or scandalous, although such questions or inquiries may have some bearing on the questions before the Court, unless they relate to facts in issue, or to matters necessary to be known in order to determine whether or not the facts in issue existed.

Section 152- Questions intended to insult or annoy – The Court shall forbid any question which appears to it to be intended to insult or annoy, or which, though proper in itself, appears to the Court needlessly offensive in form.

17. Ans- d

Sections 141, 142 and 143 of Indian Evidence Act

Section 141 - Leading questions— Any question suggesting the answer which the person putting it wishes or expects to receive, is called a leading question.

Section 142 - When they must not be asked. — Leading questions must not, if objected to by the adverse party, be asked in an examination-in-chief, or in a re-examination, except with the permission of the Court. The Court shall permit leading questions as to matters which are introductory or undisputed, or which have, in its opinion, been already sufficiently proved.

143. When they may be asked. — Leading questions may be asked in cross-examination.

18. Ans- d

Section 135 of Indian Evidence Act - Order of production and examination of witnesses – The order in which witnesses are produced and examined shall be regulated by the law and practice for the time being relating to civil and criminal procedure respectively, and, in the absence of any such law, by the discretion of the Court.

19. Ans- e

Section 133 - Accomplice— An accomplice shall be a competent witness against an accused person; and a conviction is not illegal merely because it proceeds upon the uncorroborated testimony of an accomplice.

20. Ans- d

Section 115 of Indian Evidence Act - Estoppel—When one person has, by his declaration, act or omission, intentionally caused or permitted another person to believe a thing to be true and to act upon such belief, neither he nor his representative shall be allowed, in any suit or proceeding between himself and such person or his representative, to deny the truth of that thing.

Illustration

A intentionally and falsely leads B to believe that certain land belongs to A, and thereby induces B to buy and pay for it.

The land afterwards becomes the property of A, and A seeks to set aside the sale on the ground that, at the time of the sale, he had no title. He must not be allowed to prove his want of title.

21. Ans- c

Section 119 of Indian Evidence Act - Witness unable to communicate verbally – A witness who is unable to speak may give his evidence in any other manner in which he can make it intelligible, as by writing or by signs; but such writing must be written and the signs made in open Court, evidence so given shall be deemed to be oral evidence:

Provided that if the witness is unable to communicate verbally, the Court shall take the assistance of an interpreter or a special educator in recording the statement, and such statement shall be video graphed.

22. Ans- e

Section 105 of Evidence Act.

Illustration b - A, accused of murder, alleges that, by grave and sudden provocation, he was deprived of the power of self-control. The burden of proof is on A.

23. Ans- b

Section 95 of Evidence Act - Evidence as to document unmeaning reference to existing facts. — When language used in a document is plain in itself, but is unmeaning in reference to existing facts, evidence may be given to show that it was used in a peculiar sense.

24. Ans- c

Section 76 and 77 of Indian Evidence Act.

25. Ans- c

Section 61 of Indian Evidence Act - Proof of contents of documents. — The contents of documents may be proved either by primary or by secondary evidence.

26. Ans- a

Res inter alios acta, aliis nec nocet nec prodest (Latin for "a thing done between others does not harm or benefit others") is a law doctrine which holds that a contract cannot adversely affect the rights of one who is not a party to the contract. It talks about something that is transacted between other parties.

"Res inter alios" has a common meaning: "A matter between others is not our business."

As a general rule, the evidence of res inter alios acta is inadmissible. However, under Section 46 of Indian Evidence Act, facts bearing upon the opinion of experts, even in some other suit, becomes relevant when such facts support or are inconsistent with the opinion of experts.

For example - The question is, whether A was poisoned by a certain poison. The fact that other persons, who were poisoned by that poison, exhibited certain symptoms which experts affirm or deny to be the symptoms of that poison, is relevant.

27. Ans- b

Section 31 of Indian Evidence Act - Admissions not conclusive proof, but may estop—Admissions are not conclusive proof of the matters admitted but they may operate as estoppels under the provisions hereinafter contained.

28. Answer: C.

The doctrine of res gestae is an exception to the rule that hearsay evidence is not admissible in the court of law. As res gestae is based on evidence which is hearsay in nature and still it is admissible in the court of law.

29. Answer: C.

S. 6 of The Indian Evidence Act, 1872-

Illustration (d) The question is, whether certain goods ordered from B were delivered to A. The goods were delivered to several intermediate persons successively. Each delivery is a relevant fact.

30. Ans. E.

As per S.3 of the Indian Evidence Act,

"Fact".— "Fact" means and includes — (1) anything, state of things, or relation of things, capable of being perceived by the senses;

(2) any mental condition of which any person is conscious.

Illustrations

(a) That there are certain objects arranged in a certain order in a certain place, is a fact.

(b) That a man heard or saw something, is a fact.

(c) That a man said certain words, is a fact.

(d) That a man holds a certain opinion, has a certain intention, acts in good faith or fraudulently, or uses a particular word in a particular sense, or is or was at a specified time conscious of a particular sensation, is a fact.

31. Ans. C.

As per S.3 of the Indian Evidence Act, 1872- "Document". —"Document" means any matter expressed or described upon any substance by means of letters, figures or marks, or by more than one of those means, intended to be used, or which may be used, for the purpose of recording that matter.

32. Answer: B.

As per S.3 of the Indian Evidence Act, 1872-

"Shall presume" — Whenever it is directed by this Act that the Court shall presume a fact, it shall regard such fact as proved, unless and until it is disproved.

33. Answer: C.

S. 3.

"Conclusive proof" — When one fact is declared by this Act to be conclusive proof of another, the Court shall, on proof of the one fact, regard the other as proved, and shall not allow evidence to be given for the purpose of disproving it.

34. Answer: C.

S. 9. Facts necessary to explain or introduce relevant facts. — Facts necessary to explain or

introduce a fact in issue or relevant fact, or which support or rebut an inference suggested by a fact in issue or relevant fact, or which establish the identity of any thing or person whose identity is relevant, or fix the time or place at which any fact in issue or relevant fact happened, or which show the relation of parties by whom any such fact was transacted, are relevant in so far as they are necessary for that purpose.

Illustration-

(a) The question is, whether a given document is the will of A. The state of A's property and of his family at the date of the alleged will may be relevant facts.

35. Answer: A.

S. 11. When facts not otherwise relevant become relevant. – Facts not otherwise relevant are relevant —

(1) if they are inconsistent with any fact in issue or relevant fact;

(2) if by themselves or in connection with other facts they make the existence or non-existence of any fact in issue or relevant fact highly probable or improbable.

36. Ans – C

S. 21. Proof of admission against persons making them, and by or on their behalf

Admissions are relevant and may be proved as against the person who makes them, or his representative in interest; but they can not be proved by or on behalf of the person who makes them or by his representative in interest, except in the following cases.

(1) An admission may be proved by or on behalf of the person making it, when it is of such a nature that, if the person making it were dead it would be relevant as between the third person under section 32.

(2) An admission may be proved by or on behalf of the person making it, when it consists of a statement of the existence of any state of mind or body, relevant or in issue, made at or about the time when such state of mind or body existed, and is accompanied by conduct rendering its falsehood improbable.

(3) An admission may be proved by or on behalf of the person making it if it is relevant otherwise than as an admission.

37. Answer – A.

An admission is an inference as mentioned under s. 17 of the Indian Evidence Act.

S. 17. Admission defined —An admission is a statement, oral or documentary or contained in electronic form, which suggests any inference as to any fact in issue or relevant fact, and which is made by any of the persons, and under the circumstances, hereinafter mentioned.

38. Answer – A.

S. 20. Admissions by persons expressly referred to by party to suit.

Illustration appended to S. 20 -

The question is, whether a horse sold by A to B is sound.

A says to B — “Go and ask C, C knows all about it.” C’s statement is an admission.

39. Answer: B.

A dying declaration is an admission and comes under the exceptional circumstances under s.21. This exception enables a person to prove his own statement where the circumstances are such that he is on death bed and is making a statement as to the cause of his death. It is presumed that a person says the truth when he is about to die, as he is going to meet his maker “the God.”

40. Ans. D.

Where there is an agreement to the fact either express or implied that evidence of admission will not be given, then it will not be produced/adduced before the court. It is just to encourage the parties to settle their matter of dispute with full freedom where they can diverse the things.

S. 23. Admissions in civil cases when relevant. — In civil cases no admission is relevant, if it is made either upon an express condition that evidence of it is not to be given, or under circumstances from which the Court can infer that the parties agreed together that evidence of it should not be given.

41. Ans. B

S. 32. Cases in which statement of relevant fact by person who is dead or cannot be found, etc., is relevant. — Statements, written or verbal, of relevant facts made by a person who is dead, or who cannot be found, or who has become incapable of giving evidence, or whose attendance cannot be procured without an amount of delay or expense which under the circumstances of the case appears to the Court unreasonable, are themselves relevant facts in the following cases: –
(1) When it relates to cause of death. — When the statement is made by a person as to the cause of his death, or as to any of the circumstances of the transaction which resulted in his death, in cases in which the cause of that person’s death comes into question.

42. Answer: D.

S. 32. Cases in which statement of relevant fact by person who is dead or cannot be found, etc., is relevant. — Statements, written or verbal, of relevant facts made by a person who is dead, or who cannot be found, or who has become incapable of giving evidence, or whose attendance cannot be procured without an amount of delay or expense which under the circumstances of the

case appears to the Court unreasonable, are themselves relevant facts in the following cases: –

(2) or is made in course of business. — When the statement was made by such person in the ordinary course of business, and in particular when it consists of any entry or memorandum made by him in books kept in the ordinary course of business, or in the discharge of professional duty; or of an acknowledgement written or signed by him of the receipt of money, goods, securities or property of any kind; or of a document used in commerce written or signed by him; or of the date of a letter or other document usually dated, written or signed by him.

43. Answer: E.

S. 45. Opinions of experts. — When the Court has to form an opinion upon a point of foreign law or of science, or art, or as to identity of handwriting, or finger impressions, the opinions upon that point of persons specially skilled in such foreign law, science or art, or in questions as to identity of handwriting or finger impressions are relevant facts. Such persons are called experts.

44. Ans. B.

As per S. 47. Opinion as to hand-writing, when relevant. — When the Court has to form an opinion as to the person by whom any document was written or signed, the opinion of any person acquainted with the handwriting of the person by whom it is supposed to be written or signed that it was or was not written or signed by that person, is a relevant fact.

45. Ans. D.

As per S. 50. Opinion on relationship, when relevant. — When the Court has to form an opinion as to the relationship of one person to another, the opinion, expressed by conduct, as to the existence of such relationship, of any person who, as a member of the family or otherwise, has special means of knowledge on the subject, is a relevant fact:

46. Ans. B.

S. 52. In civil cases character to prove conduct imputed, irrelevant. — In civil cases, the fact that the character of any person concerned is such as to render probable or improbable any conduct imputed to him, is irrelevant, except in so far as such character appears from facts otherwise relevant.

S. 53. In criminal cases previous good character relevant. — In criminal proceedings, the fact that the person accused is of a good character, is relevant.

47. Ans. B. In the case of Queen Vs. Abdullah 1885, the throat of deceased was cut and she could not speak but she made signs and gestures to reveal the name of accused. This was held as a valid form of dying declaration by the court.

48. Answer: A.

As per Indian Evidence Act, 1872 S.56. Fact judicially noticeable need not be proved. This section provides for facts Judicially noticeable that means the Court can take judicial notice of such facts as they are well-known and can be asserted authoritatively. Judicial notice allows a well-known or authoritatively attested fact to be produced as evidence without having to prove them, as they cannot reasonably be doubted. Judicial notice is taken upon the request of a party that submits the fact. and such facts need not be proved.

49. Answer: D.

As per Illustration s. 60 of the Indian Evidence Act, 1872.

S. 60. Oral evidence must be direct. — Oral evidence must, in all cases, whatever, be direct; that is to say —

if it refers to a fact which could be seen, it must be the evidence of a witness who says he saw it;

if it refers to a fact which could be heard, it must be the evidence of a witness who says he heard it;

if it refers to a fact which could be perceived by any other sense or in any other manner, it must be the evidence of a witness who says he perceived it by that sense or in that manner;

if it refers to an opinion or to the grounds on which that opinion is held, it must be the evidence of the person who holds that opinion on those grounds:

50. Answer: A.

S. 60. Oral evidence must be direct.

51. Answer: A.

S. 62. Primary evidence. — Primary evidence means the document itself produced for the inspection of the Court.

52. Answer: B.

S. 62. Primary evidence. — Primary evidence means the document itself produced for the inspection of the Court.

Explanation 1. —Where a document is executed in several parts, each part is primary evidence of the document.

53. Answer: B.

S. 62 Primary Evidence

Explanation 2. — Where a number of documents are all made by one uniform process, as in the case of printing, lithography or photography, each is primary evidence of the contents of the rest; but, where they are all copies of a common original, they are not primary evidence of the contents of the original.

54. Ans. D

As per IEA 1872, s. 64. Proof of documents by primary evidence. — Documents must be proved by primary evidence except in the cases hereinafter mentioned.

55. Ans. A.

As per s. 65. Cases in which secondary evidence relating to documents may be given

(e) when the original is a public document within the meaning of section 74;

56. Ans. B.

Certified copy of a judgment will be secondary evidence only. It is prepared from the original copy of judgment and is recognized to be used in courts etc.

It comes under s. 65. Cases in which secondary evidence relating to documents may be given

(f) when the original is a document of which a certified copy is permitted by this Act, or by any other law in force in India to be given in evidence;

57. Ans. C.

S. 71. Proof when an attesting witness denies the execution. — If the attesting witness denies or does not recollect the execution of the document, its execution may be proved by other evidence.

58. Ans. D.

As per S. 63 Secondary Evidence-

Illustration (d) Neither an oral account of a copy compared with the original, nor an oral account of a photograph or machine-copy of the original, is secondary evidence of the original.

59. Ans. B.

As per Indian Evidence Act, 1872, S. 72. Proof of document not required by law to be attested. —
— An attested document not required by law to be attested may be proved as if it was unattested.

60. Ans. D.

As per S. 79. Presumption as to genuineness of certified copies. — The Court shall presume to be genuine every document purporting to be a certificate, certified copy or other document, which is by Law declared to be admissible as evidence of any particular fact and which purports to be duly certified by any officer of the Central Government or of a State Government, or by any officer in the State of Jammu and Kashmir who is duly authorized thereto by the Central Government.

61. Ans. B.

S. 83. Presumption as to maps or plans made by authority of Government. — The Court shall presume that maps or plans purporting to be made by the authority of the Central Government or any State Government were so made, and are accurate; but maps or plans made for the purposes of any cause must be proved to be accurate.

62. Ans. B.

S. 85. Presumption as to powers-of-attorney. — The Court shall presume that every document purporting to be a power-of-attorney, and to have been executed before, and authenticated by, a Notary Public, or any Court, Judge, Magistrate, Indian Consul or Vice-Consul, or representative of the Central Government, was so executed and authenticated. Shall presume marks a rebuttable presumption in favour of power of attorney which can be rebutted if evidence is given against it.

63. Ans. D.

S. 85C. Presumption as to Electronic Signature Certificates — The Court shall presume, unless contrary is proved, that the information listed in a Electronic Signature Certificate is correct, except for information specified as subscriber information which has not been verified, if the certificate was accepted by the subscriber.

64. Ans. A.

S. 88A. Presumption as to electronic messages. — The Court may presume that an electronic message, forwarded by the originator through an electronic mail server to the addressee to whom the message purports to be addressed corresponds with the message as fed into his computer for transmission; but the Court shall not make any presumption as to the person by whom such message was sent.

65. Ans. C.

As per S. 89. Presumption as to due execution, etc., of documents not produced. —The Court shall presume that every document, called for and not produced after notice to produce, was attested, stamped and executed in the manner required by law.

66. Ans. A.

As per S. 90A. Presumption as to electronic records five years old. — Where any electronic record, purporting or proved to be five years old, is produced from any custody which the Court in the particular case considers proper, the Court may presume that the electronic signature which purports to be the electronic signature of any particular person was so affixed by him or any person authorised by him in this behalf.

67. Ans. A.

The Information Technology (IT) Act 2000 was amended to allow for the admissibility of digital evidence. An amendment to the Indian Evidence Act 1872, the Indian Penal Code 1860 and the Banker's Book Evidence Act 1891 provides the legislative framework for transactions in electronic world. By this amendment s. 90 A was added to the Indian Evidence Act, 1872.

68. Ans. D.

As per S. 63. Secondary evidence. — Secondary evidence means and includes —

- (1) certified copies given under the provisions hereinafter contained;
- (2) copies made from the original by mechanical processes which in themselves insure the accuracy of the copy, and copies compared with such copies;
- (3) copies made from or compared with the original;
- (4) counterparts of documents as against the parties who did not execute them;
- (5) oral accounts of the contents of a document given by some person who has himself seen it.

69. Ans. D.

As per S. 76 Explanation-

S. 76. Certified copies of public documents. — Every public officer having the custody of a public document, which any person has a right to inspect, shall give that person on demand a copy of it on payment of the legal fees there for, together with a certificate written at the foot of such copy that it is a true copy of such document or part thereof, as the case may be, and such certificate shall be dated and subscribed by such officer with his name and his official title, and shall be sealed, whenever such officer is authorized by law to make use of a seal; and such copies so certified shall be called certified copies.

Explanation. — Any officer who, by the ordinary course of official duty, is authorized to deliver such copies, shall be deemed to have the custody of such documents within the meaning of this section.

70. Ans. A.

S. 64. Proof of documents by primary evidence. — Documents must be proved by primary evidence except in the cases hereinafter mentioned.

71. Answer: D

S. 8. Motive, preparation and previous or subsequent conduct.—Any fact is relevant which shows or constitutes a motive or preparation for any fact in issue or relevant fact. The conduct of any party, or of any agent to any party, to any suit or proceeding, in reference to such suit or proceeding, or in reference to any fact in issue therein or relevant thereto, and the conduct of any person an offence against whom is the subject of any proceeding, is relevant, if such conduct influences or is influenced by any fact in issue or relevant fact, and whether it was previous or subsequent thereto. Explanation 1.—The word “conduct” in this section does not include

statements, unless those statements accompany and explain acts other than statements; but this explanation is not to affect the relevancy of statements under any other section of this Act. Explanation 2.—When the conduct of any person is relevant, any statement made to him or in his presence and hearing, which affects such conduct, is relevant.

72. Answer: A.

As per Indian Evidence Act, 1872 S. 118. Who may testify.

73. Answer: A.

S. 118 Who may testify.

Explanation. — A lunatic is not incompetent to testify, unless he is prevented by his lunacy from understanding the questions put to him and giving rational answers to them.

74. Answer: C.

As per Indian Evidence Act, 1872-

S. 119. Witness unable to communicate verbally. — A witness who is unable to speak may give his evidence in any other manner in which he can make it intelligible, as by writing or by signs; but such writing must be written and the signs made in open Court, evidence so given shall be deemed to be oral evidence:

Provided that if the witness is unable to communicate verbally, the Court shall take the assistance of an interpreter or a special educator in recording the statement, and such statement shall be video graphed.

75. Answer: A.

S. 119. Witness unable to communicate verbally. — A witness who is unable to speak may give his evidence in any other manner in which he can make it intelligible, as by writing or by signs; but such writing must be written and the signs made in open Court, evidence so given shall be deemed to be oral evidence:

Provided that if the witness is unable to communicate verbally, the Court shall take the assistance of an interpreter or a special educator in recording the statement, and such statement shall be video graphed.

76. Answer: A.

S. 120. Parties to civil suit, and their wives or husbands. Husband or wife of person under criminal trial. — In all civil proceedings the parties to the suit, and the husband or wife of any party to the suit, shall be competent witnesses.

77. Answer: A.

S. 120. Parties to civil suit, and their wives or husbands. Husband or wife of person under criminal trial- In criminal proceedings against any person, the husband or wife of such person, respectively, shall be a competent witness.

78. Answer: C.

S. 121. Judges and Magistrates.

Illustration.

(a) A, on his trial before the Court of Session, says that a deposition was improperly taken by B, the Magistrate. B cannot be compelled to answer questions as to this, except upon the special order of a superior Court.

79. Answer: C.

S. 122. Communications during marriage.

80. Answer: a)

S. 122. Communications during marriage.

No person who is or has been married shall be compelled to disclose any communication made to him during marriage by any person to whom he is or has been married; nor shall he be permitted to disclose any such communication, unless the person who made it, or his representative in interest, consents, except in suits between married persons, or proceedings in which one married person is prosecuted for any crime committed against the other.

81. Answer: C.

S. 122. Communications during marriage.

No person who is or has been married shall be compelled to disclose any communication made to him during marriage by any person to whom he is or has been married; nor shall he be permitted to disclose any such communication, unless the person who made it, or his representative in interest, consents, except in suits between married persons, or proceedings in which one married person is prosecuted for any crime committed against the other.

82. Ans. C.

S. 124. Official communications. — No public officer shall be compelled to disclose communications made to him in official confidence, when he considers that the public interests would suffer by the disclosure.

83. Ans. B.

S. 125. Information as to commission of offences. — No Magistrate or police-officer shall be compelled to say whence he got any information as to the commission of any offence, and no revenue officer shall be compelled to say whence he got any information as to the commission of any offence against the public revenue.

84. Ans. D.

S. 126 Professional Communications-

Provided that nothing in this section shall protect from disclosure — (1) any such communication made in furtherance of any illegal purpose, (2) any fact observed by any barrister, pleader, attorney or vakil, in the course of his employment as such, showing that any crime or fraud has been committed since the commencement of his employment. It is immaterial whether the attention of such barrister, pleader, attorney or vakil was or was not directed to such fact by or on behalf of his client. Explanation. — The obligation stated in this section continues after the employment has ceased.

85. Ans. E.

S.126. Professional communications. — No barrister, attorney, pleader or vakil shall at any time be permitted, unless with his client's express consent, to disclose any communication made to him in the course and for the purpose of his employment as such barrister, pleader, attorney or vakil, by or on behalf of his client, or to state the contents or condition of any document with which

he has become acquainted in the course and for the purpose of his professional employment or to disclose any advice given by him to his client in the course and for the purpose of such employment:

S. 127. Section 126 to apply to interpreters, etc. — The provisions of section 126 shall apply to interpreters, and the clerks or servants of barristers, pleaders, attorneys and vakils.

86. Ans. C.

As per S. 129. Confidential communications with legal advisers. — No one shall be compelled to disclose to the Court any confidential communication which has taken place between him and his legal professional adviser, unless he offers himself as a witness, in which case he may be compelled to disclose any such communications as may appear to the Court necessary to be known in order to explain any evidence which he has given, but no others.

87. Ans. C.

S. 132. Witness not excused from answering on ground that answer will criminate. — A witness shall not be excused from answering any question as to any matter relevant to the matter in issue in any suit or in any civil or criminal proceeding, upon the ground that the answer to such question will criminate, or may tend directly or indirectly to criminate, such witness, or that it will expose, or tend directly or indirectly to expose, such witness to a penalty or forfeiture of any kind:

88. Ans. A. As per S. 133. Accomplice. — An accomplice shall be a competent witness against an accused person; and a conviction is not illegal merely because it proceeds upon the uncorroborated testimony of an accomplice.

89. Ans. E.

S. 134. Number of witnesses. — No particular number of witnesses shall in any case be required for the proof of any fact.

90. Ans. B.

S. 137. Cross-examination. — The examination of a witness by the adverse party shall be called his cross-examination.

91. Ans. D.

S. 139. Cross-examination of person called to produce a document. — A person summoned to produce a document does not become a witness by the mere fact that he produces it and cannot be cross-examined unless and until he is called as a witness.

92. Ans. B.

As per S. 141. Leading questions. — Any question suggesting the answer which the person putting it wishes or expects to receive is called a leading question.

93. Ans. A.

As per S. 143. When they may be asked. — Leading questions may be asked in cross-examination.

94.

Ans. C.

S. 146. Questions lawful in cross-examination.

Provided that in a prosecution for an offence under section 376, section 376A, section 376B, section 376C, section 376D or section 376E of the Indian Penal Code or for attempt to commit any such offence, where the question of consent is an issue, it shall not be permissible to adduce evidence or to put questions in the cross-examination of the victim as to the general immoral character, or previous sexual experience, of such victim with any person for proving such consent or the quality of consent.

95. Ans. B.

S. 147. When witness to be compelled to answer. — If any such question relates to a matter relevant to the suit or proceeding, the provisions of section 132 shall apply thereto.

96. Ans. B.

As per S. 148 (1) such questions are proper if they are of such a nature that the truth of the imputation conveyed by them would seriously affect the opinion of the Court as to the credibility of the witness on the matter to which he testifies;

97. Ans. D.

As per 151. Indecent and scandalous questions . — The Court may forbid any questions or inquiries which it regards as indecent or scandalous, although such questions or inquiries may have some bearing on the questions before the Court unless they relate to facts in issue, or to matters necessary to be known in order to determine whether or not the facts in issue existed.

98. Ans. E.

S.159. Refreshing memory. — A witness may, while under examination, refresh his memory by referring to any writing made by himself at the time of the transaction concerning which he is questioned, or so soon afterwards that the Court considers it likely that the transaction was at that time fresh in his memory. The witness may also refer to any such writing made by any other person, and read by the witness within the time aforesaid, if when he read it he knew it to be correct. Provided the Court be satisfied that there is sufficient reason for the non-production of the original. An expert may refresh his memory by reference to professional treatises.

99. Ans. A.

As per s. 167. No new trial for improper admission or rejection of evidence. — The improper admission or rejection of evidence shall not be ground of itself for a new trial or reversal of any decision in any case, if it shall appear to the Court before which such objection is raised that, independently of the evidence objected to and admitted, there was sufficient evidence to justify the decision, or that, if the rejected evidence had been received, it ought not to have varied the decision.

100. Ans. A.

S. 156. Questions tending to corroborate evidence of relevant fact, admissible. — When a witness whom it is intended to corroborate gives evidence of any relevant fact, he may be questioned as to another circumstances which he observed at or near to the time or place at which such relevant fact occurred, if the Court is of opinion that such circumstances, if proved, would corroborate the testimony of the witness as to the relevant fact which he testifies.